

[10 EDW. 7 & *Fraserburgh Water Order Confirmation* [Ch. ciii.]
1 GEO. 5.] Act, 1910.



CHAPTER ciii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Fraserburgh Water. A.D. 1910.
[3rd August 1910.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Fraserburgh Water Order Confirmation Act 1910. Short title.

A.D. 1910.

S C H E D U L E.

FRASERBURGH WATER.

Provisional Order to authorise the Provost Magistrates and Councillors of the burgh of Fraserburgh to provide an additional Water Supply and to construct and maintain new Waterworks and for other purposes.

WHEREAS the water supply for the burgh of Fraserburgh in the county of Aberdeen (herein-after called "the burgh") was introduced under and by virtue of the Public Health (Scotland) Supplemental Act 1870 by the then commissioners of police of the burgh as the local authority under the Public Health (Scotland) Act 1867 and extensions were made under and by virtue of the Public Health (Scotland) Act 1867 Orders Confirmation Act 1875 (No. 2) and the Fraserburgh Waterworks Confirmation Act 1883:

And whereas the affairs of the burgh including the existing waterworks and water supply are now managed and administered by the provost magistrates and councillors thereof (herein-after called "the Town Council") under among others the Burgh Police (Scotland) Acts 1892 to 1903 and the Town Council are also the local authority within the burgh under the Public Health (Scotland) Act 1897:

And whereas the boundaries of the burgh were extended and defined by the sheriff of the county of Aberdeen by decree dated the second and registered in the sheriff court books of the said county on the nineteenth both days of September in the year one thousand nine hundred and three and the boundaries so defined are the existing boundaries of the burgh:

And whereas in consequence of the rapid growth of the burgh in recent years and the erection of many dwelling-houses and other buildings on the higher ground on the outskirts of the burgh and of the increase of the residential population which during several months of every year is largely augmented by the influx of strangers in connexion with the herring fishing

the staple industry of the burgh the present supply of water has become inadequate and insufficient both as regards quantity and pressure for the domestic and trade requirements and for the health and convenience of the community: A.D. 1910.

And whereas it is expedient that a more abundant supply of water with increased pressure should be provided for use within the burgh and that the Town Council should be empowered to introduce the same and for that purpose to acquire lands and construct and maintain additional waterworks:

And whereas it is expedient that the limits within which the Town Council are required to give a supply of water should be defined and that they should be authorised to supply water beyond such limits:

And whereas it is expedient that the Town Council should be authorised to raise money by rates assessments and charges and by borrowing for the purposes of this Order and of their water supply in accordance with the provisions in that behalf of the Burgh Police (Scotland) Acts 1892 to 1903 and this Order:

And whereas it is expedient that further powers should be conferred on the Town Council in relation to their waterworks and water supply:

And whereas estimates have been prepared by the Town Council for the construction and completion of the said additional waterworks and other works and for the purchase of lands and such estimates are as follows:—

	£
Purchase of lands and servitudes - - - -	2500
Reservoir service reservoir filters &c. (Works Nos. 1 3 and 5) - - - -	5688
Trunk mains (Works Nos. 2 4 and 6) - - - -	37565
Road diversion (Work No. 7) and subsidiary works	117

And whereas the said several works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas plans and sections showing the lines and levels of the waterworks authorised by this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken for the purposes

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A.D. 1910. or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Aberdeen and are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short title
and com-
mencement
of Order.

1. This Order may be cited for all purposes as the Fraserburgh Water Order 1910 and shall come into operation at the date of the passing of the Act confirming the same which date is referred to in this Order as “the commencement of this Order.”

Incorporation
of Acts.

2. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order (namely):—

The Lands Clauses Acts:

The Waterworks Clauses Act 1847 except the sections and provisions thereof with respect to the communication pipes to be laid by the undertakers and with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and also with the exception of sections 68 70 71 and 72:

The Waterworks Clauses Act 1863:

The sections and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith and in construing the said sections and provisions “the company” means the Town Council “the railway” means the reservoir and embankment authorised by this Order and the works immediately connected therewith and “the centre of the railway” means any part of those works.

3. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings and the following expressions shall have the meanings respectively assigned to them in this section (namely):—

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Interpreta-
tion.

“The burgh” means the burgh of Fraserburgh;

“The Town Council” means the provost magistrates and councillors of the burgh;

“The county council” means the county council of the county of Aberdeen;

“The Burgh Police Acts” means the Burgh Police (Scotland) Acts 1892 to 1903;

“The water undertaking” means the existing waterworks and water undertaking of the Town Council and the waterworks and water undertaking authorised by this Order;

“The sheriff” means the sheriff of Aberdeen Kincardine and Banff or any of his substitutes:

In the Acts incorporated with this Order unless there be something in the subject or context repugnant to such construction the expression “the undertakers” means the Town Council.

4. Subject to the provisions of this Order the limits for the compulsory supply of water by the Town Council shall be the burgh.

Limits of
supply.

5. Subject to the provisions of this Order the Town Council may wholly in the county of Aberdeen and in the lines and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following waterworks shown on the deposited plans and sections (that is to say):—

Power to
make new
waterworks.

Work No. 1.—An embankment or dam for the purpose of raising and storing the waters of two confluent streams forming a tributary of the stream known as the Water of Fedderate in the parish of New Deer to be placed across the said tributary at a point situated at a distance of 193 yards or thereby below the point of junction of the

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said two confluent streams and to commence on the south-westerly side of the said tributary at a point about 77 yards measured in a south-westerly direction from the centre of the said tributary and thence in a straight line in a north-easterly direction across the said tributary and to terminate on the north-easterly side of the said tributary at a point distant about 77 yards measured in a north-easterly direction from the centre of said tributary from which embankment the said water raised and stored as aforesaid will extend along the valley of the combined streams and along and around the course of the southern stream for a distance of 510 yards or thereby and along and around the course of the northern stream for a distance of 556 yards or thereby both of the said distances being measured in direct line from the centre line of said embankment or dam at the point of its intersection with the said tributary :

Work No. 2.—A conduit or line of pipes commencing in the parish of New Deer at the embankment or dam (Work No. 1) herein-before described and continuing thence from through or into the parishes of New Deer Old Deer and Strichen and terminating in the said parish of Strichen at the junction of the said conduit or line of pipes with the service reservoir (Work No. 3) herein-after described :

Work No. 3.—A service reservoir wholly in the parish of Strichen and situated on the east side of the Strichen to Fraserburgh turnpike road at a distance of 700 yards or thereby north of the centre of the road leading to the farm of Newseat :

Work No. 4.—A conduit or line of pipes commencing in the parish of Strichen at the service reservoir (Work No. 3) herein-before described and continuing thence from through or into the parishes of Strichen Rathen and Fraserburgh to the filters (Work No. 5) herein-after described :

Work No. 5.—Filters wholly situated in the parish of Fraserburgh in the field on the east side of the turnpike road from Strichen to Fraserburgh immediately to the east of the farmhouse of South Middleburgh :

Work No. 6.—A conduit or line of pipes wholly situated in the parish of Fraserburgh commencing at the filters

(Work No. 5) herein-before described and terminating by junctions with the existing water mains of the Town Council in Dennyduff Road where that road crosses the old road leading to the Fraserburgh and Banff turnpike: A.D. 1910.

Work No. 7.—A diversion of the accommodation or farm road wholly situated in the parish of New Deer leading from the highway at Bonnykelly School past the Smithy and Whitecairns Crofts down to the tributary of the Water of Fedderate commencing at a point on the said accommodation road 36 yards or thereby south-eastwards from the north-east extremity of the embankment or dam (Work No. 1) herein-before described and terminating at a point on the existing accommodation road 136 yards or thereby in a straight line measured in a north-westerly direction from the said point of commencement.

6. In addition to the waterworks by this Order authorised and in connection therewith the Town Council may upon or in the lands delineated on the deposited plans and described in the deposited book of reference make erect and maintain all such embankments dams weirs intake weirs bywash channels bridges roads accesses approaches wells tanks gauges filter-beds sluices outlets drains aqueducts culverts channels cuts mains pipes engines machinery buildings telegraphs telephones posts wires and other works and conveniences as may be necessary or convenient in connection with or subsidiary to the waterworks or any of them but nothing in this section shall exonerate the Town Council from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them Provided that any telegraphs telephones posts wires and other works made erected or maintained by the Town Council shall not be used in contravention of the exclusive privilege conferred upon the Postmaster General by the Telegraph Act 1869. Power to make subsidiary works.

7. In the construction of the works by this Order authorised the Town Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels of the various works as shown on the deposited sections to any extent not Limits of deviation.

A.D. 1910. exceeding five feet upwards and to any extent downwards
— Provided as follows (that is to say):—

The Town Council shall not construct the embankment or dam (Work No. 1) of a greater height above the general surface of the ground than that shown on the deposited sections in respect thereof and five feet in addition:

Except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

User of
accommoda-
tion road.

8. The Town Council may acquire a servitude over or right of user of so much of the accommodation road in the parish of New Deer leading from the highway at Bonnykelly School past the Smithy and Whitecairns Crofts down to the tributary of the Water of Fedderate as lies between the commencement of the road diversion (Work No. 7) by this Order authorised and the junction of the said accommodation road with the said highway and the provisions of the Lands Clauses Acts shall apply to such servitude or user as if the same was included in the word "lands" in those Acts.

As to com-
pensation
water.

9.—(1) Until the date of the completion of the embankment or dam (Work No. 1) the Town Council may take from the tributary stream intercepted by that work and flowing into the stream known as the Water of Fedderate any water they may require subject to the following restrictions:—

(A) They shall place a gauge weir across the said tributary stream at or near the proposed intake through an aperture in which four hundred thousand gallons of water shall be allowed to pass and flow down the stream every day of twenty-four hours:

(B) On any such day during such time as the flow of water in the said tributary stream shall be less than at the rate of four hundred thousand gallons per day of twenty-four hours the Town Council shall not be entitled to draw any water therefrom but during such time as the flow is in excess of such rate the Town Council may take all or such part of the excess as they may require.

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(2) After the embankment or dam (Work No. 1) is completed A.D. 1910.
the following provisions shall apply :—

(A) The Town Council shall during every day of twenty-four hours discharge or deliver into the said tributary stream at a point therein immediately below the foot of the embankment or dam (Work No. 1) not less than four hundred thousand gallons of water in a continuous flow :

(B) For the purpose of measuring the quantity of water to be so discharged or delivered into the said tributary stream the Town Council shall erect and maintain at a point on the said tributary stream immediately below the foot of the embankment or dam (Work No. 1) a proper and suitable measuring gauge over or through which the said compensation water shall flow and the same shall be under the sole management of the Town Council and shall be open to the inspection and examination at all reasonable times of all persons interested therein.

(3) In case of any neglect on the part of the Town Council to maintain any gauge in a state of efficiency and in case of any other neglect by or in consequence of which the said respective quantities of compensation water shall not so flow the Town Council shall for every day on which such neglect occurs forfeit and pay to each of the persons affected thereby (who may sue for and recover the same) the sum of five pounds and shall in addition make compensation for any loss damage or injury sustained by such persons or any of them.

(4) If any difference arises between the Town Council and any person so interested with respect to the construction or use of any gauge or the state of repair or condition thereof such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed upon) on the application of either of them by the sheriff.

(5) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water of the said stream which the Town Council can divert collect impound or appropriate by means of the works by this Order authorised.

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For protec-
tion of cer-
tain mills in
parish of
Deer.

10. Notwithstanding anything in subsection (5) of the immediately preceding section of this Order John Henry Bridges or other the owner for the time being of the mills known as the Meal Mill the Corn Mill and the Saw Mill of Fedderate on the Water of Fedderate in the parish of New Deer and county of Aberdeen all tenanted by John George Forbes and the owners for the time being of the estate of Clackriach in the parish of Old Deer and county of Aberdeen and John Norrie miller Mill of Clackriach in the said parish and county as tenant of the said Mill of Clackriach forming part of the said estate of Clackriach under lease between the trustees of John Gordon's Charitable Fund and the now deceased John Norrie father of the said John Norrie the present tenant dated eighth and sixteenth June one thousand nine hundred shall respectively be entitled if the said mills or any of them or the said estate of Clackriach be injuriously affected by the exercise of the powers of this Order to receive compensation (in addition to the compensation provided by the immediately preceding section of this Order) for any loss or damage sustained by them respectively by reason of such injurious affection in accordance with the provisions of section 6 of the Waterworks Clauses Act 1847 and the arbiters in fixing such compensation (if any) shall take into account the provisions other than subsection (5) of the immediately preceding section of this Order.

For protec-
tion of Milla-
den Mill.

11. In addition to the compensation provided by the section of this Order of which the marginal note is "As to compensation water" and as further compensation for loss and damage sustained by the owner for the time being of the Cloth Mill on the South Ugie River known as the Milladen Mill by the exercise by the Town Council of the powers of this Order the Town Council shall within one month from the commencement of this Order pay to the owner the sum of four hundred and thirty-one pounds ten shillings.

Laying
mains on
public roads.

12. The Town Council may subject to the provisions of the section of this Order the marginal note whereof is "For protection of county council" at any time for the purposes of distributing and supplying water beyond the burgh lay down make maintain and use aqueducts conduits or lines of pipes through over under along across or into any public road or highway and renew alter enlarge duplicate and increase the number and size thereof or extend the same and stop up

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temporarily any such public road or highway for such purposes A.D. 1910.
providing when possible a proper temporary substitute to the
reasonable satisfaction of the road authority before interrupting
the traffic on any such road and making full compensation to all
persons injuriously affected by anything done under the provisions
of this section.

13. For the purposes and during the execution of the several works which the Town Council are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Town Council may temporarily from time to time break up or cross over or under alter or stop up any streets highways roads lanes footways footpaths bridges tramways railways canals passages sewers drains watercourses gas pipes and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such street highway road lane footway footpath bridge tramway railway canal or passage or the flow of water gas sewage or electricity or telephonic communication in any such sewer drain watercourse canal pipe or apparatus and making full compensation to all persons injuriously affected thereby Provided that nothing in this section shall extend to authorise any interference with electric telegraphic or telephonic apparatus or other property of His Majesty's Postmaster General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with the provisions of that section.

Power to
alter roads
&c. tempo-
rarily.

14. On the completion of the road diversion (Work No. 7) by this Order authorised the diverted portion of road shall subject to the provisions of the section of this Order the marginal note of which is "User of accommodation road" as respects management and maintenance and in all other respects be held as part of and be subject to the same provisions as the existing portion of road so diverted Provided always that no portion of the existing road shall be stopped up until the -

New portion
of road to be
subject to
same pro-
visions as
existing
road.

A.D. 1910. substituted portion of road to be constructed in lieu thereof has been completed and is open to the public.

On completion of diverted portion of road site of existing road so far as superseded to vest in Town Council.

15. So soon as the road diversion (Work No. 7) by this Order authorised has been completed and opened to the public the Town Council may stop up and extinguish all rights of way over the portion of the existing road between the points of the commencement and termination of the said diversion and they may appropriate for the purposes of this Order the site of the portion of the existing road so stopped up and diverted so far as the same is bounded on both sides by lands of the Town Council Provided that the Town Council shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to take waters.

16. Subject to the provisions of this Order the Town Council may collect impound take use divert and appropriate for the purposes of the water undertaking the waters of the two confluent streams forming a tributary of the stream known as the Water of Fedderate intercepted by the embankment or dam (Work No. 1) by this Order authorised and all such springs streams and waters as may be intercepted by the works by this Order authorised.

Town Council may enlarge or increase number of pipes.

17. The Town Council may from time to time subject to the provisions of this Order and notwithstanding the expiration of the periods limited for completion of works lay down maintain use extend alter renew relay replace enlarge and increase the number and size of the works (other than reservoirs) mains pipes filters filter-beds tanks channels and other works and conveniences from time to time in use or required for filtering storing conveying and distributing water for the purposes of the water undertaking Provided always that such extension enlargement or increase shall be executed only on lands or property belonging to the Town Council or over which the Town Council have acquired a servitude or which may be acquired by them by agreement or in roads and streets which they may by the Waterworks Clauses Acts 1847 and 1863 open and break up for such purposes.

For protection of reservoirs &c.

18. The Town Council may on any lands which they may acquire under the powers of this Order or otherwise construct

all such drains channels and other works as they may think necessary or desirable for preventing sewage or polluting liquids or contaminated or impure water from entering or polluting any of the reservoirs conduits or watercourses of the Town Council or any waters flowing into the same. A.D. 1910.
from pollution.

19. The Town Council on selling any lands acquired for or in connection with the purposes of this Order and not required to be retained for those purposes may subject to the provisions of the section of this Order of which the marginal note is "Limiting powers of Town Council to abstract water" reserve to themselves all or any part of the water rights belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter or otherwise as they may think fit. Reservation of water rights on sale.

20. The Town Council may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the reservoirs and works by this Order authorised with reference to the execution by the Town Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Order authorised to be diverted collected and appropriated by the Town Council flowing to upon or from such lands directly or derivatively into such reservoirs and works. Power to agree as to drainage of lands.

21.—(1) The Town Council may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to impound and take under this Order and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water. Byelaws for preventing pollution of water.

(2) The byelaws made under this section shall be in force within the areas from or through which the said waters flow or within so much of such areas as may be defined in the byelaws.

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(3) All byelaws made under this section which affect any district beyond the burgh shall be subject to the approval of the local authority of such district. Provided that such consent shall not be necessary where in the opinion of the Local Government Board for Scotland it has been unreasonably withheld.

(4) The provisions as to byelaws to be made by a local authority contained in sections 183 to 188 of the Public Health (Scotland) Act 1897 shall apply to byelaws made by the Town Council under this section.

(5) The Town Council shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Lands Clauses Acts.

Power to discharge water into streams.

22. The Town Council may for the purpose of the repairing or cleansing of their works discharge water from any of their waterworks into any available stream or watercourse or into any stream or watercourse with which any of their waterworks may communicate. In the exercise of the powers conferred by this section the Town Council shall do as little damage as may be and shall make full compensation for all damage caused by reason or in consequence of the exercise of such powers and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Lands Clauses Acts.

Power to use lands already acquired.

23. The Town Council may hold retain and use for the purposes of their water undertaking any lands already acquired for the purposes of their existing waterworks.

Power to acquire lands.

24. Subject to the provisions of this Order the Town Council may purchase acquire hold enter upon take appropriate and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of this Order.

Owners may be required to sell parts only of certain properties.

25. Whereas in the exercise of the powers of this Order it may happen that portions only of certain properties shown on the deposited plans may be sufficient for the purposes of the Town Council and that such portions may be severed from the

remainder thereof without material detriment thereto Therefore A.D. 1910.
notwithstanding section 90 of the Lands Clauses Consolidation
(Scotland) Act 1845 the owners of and other persons interested
in the properties described in the schedule to this Order and
whereof parts only are required for the purposes of this Order
may if such portions can in the opinion of the jury arbiter or
other authority to whom the question of disputed compensation
shall be submitted be severed from the remainder thereof with-
out material detriment thereto be required to sell and convey
to the Town Council the portions only thereof so required
without the Town Council being obliged or compellable to pur-
chase the whole or any greater portion thereof the Town Council
paying for the portions required by them and making compen-
sation for any damage sustained by the owners thereof or other
parties interested therein by severance or otherwise.

26. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Town Council any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and annual feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. Persons under disability may grant servitudes &c. by agreement.

27.—(1) The Town Council may in lieu of acquiring any lands for the purposes of the works authorised by this Order where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts. Power to acquire servitudes only in certain cases.

(2) As regards any lands in respect of which the Town Council have acquired servitudes only under the provisions of this section the Town Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to

A.D. 1910. such servitudes have the same rights to use and cultivate the said lands at all times as if this Order had not been confirmed.

(3) Provided that nothing in this section contained shall authorise the Town Council to acquire by compulsion any such servitude in any case in which the owner in his particulars of claim shall require the Town Council to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this provision.

Power to
acquire and
hold lands
for protec-
tion of works
and preven-
tion of pol-
lution.

28. The Town Council may hold any lands acquired by them for the purposes of or in connection with their existing waterworks and by agreement purchase acquire and hold any other lands within the drainage area of the reservoirs and works by this Order authorised or of their existing waterworks or take servitudes or restrictions over any such lands which they may deem necessary or desirable for the purpose of securing the purity of the water in the said drainage area and of protecting their water supply against pollution fouling contamination nuisance encroachment or injury and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Order or the Lands Clauses Acts respectively Provided that the Town Council shall not create or permit a nuisance on any such lands and shall not erect or permit the erection of any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with the water undertaking or farm buildings.

The Town Council may let for such period as they think fit or sell or feu any land acquired under this section on such terms conditions and restrictions as regards its use as to the Town Council may seem fit and to secure that such land shall not be manured or broken up for tillage and that no buildings which may prejudicially affect the water supply or the purity of the water shall be erected thereon The proceeds of the sale of any land by the Town Council shall only be applied to purposes of this Order to which capital is properly applicable.

Additional
lands.

29. The Town Council may from time to time for the purposes of this Order purchase by agreement in addition to the lands by this Order authorised to be acquired by compulsion

any lands not exceeding in the whole twenty acres but nothing in this Order shall exonerate the Town Council from any action interdict or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased under the powers of this section and no house or building shall be erected on any such lands other than any houses or buildings which may be required in connexion with the water undertaking. A.D. 1910.

30. The Town Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this Order or by or in an Act of Parliament or Order confirmed by Parliament. Limiting powers of Town Council to abstract water.

31. The powers of the Town Council for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order. Period for compulsory purchase of lands.

32. If the works in this Order described are not completed within five years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Town Council for executing the same shall cease except as to so much thereof as is then completed. Period for completion of water-works.

33. The water to be supplied from any main or pipe of the Town Council whether existing or authorised to be constructed by this Order need not be constantly laid on under pressure during the execution of necessary repairs renewals or alterations nor be supplied in any case at a level above or at a greater height than can be supplied or afforded by gravitation from the service reservoirs or tanks of the Town Council already existing or by this Order authorised from which the supply is given. Pressure.

34. Notwithstanding anything to the contrary contained in the Waterworks Clauses Acts 1847 and 1863 the Town Council until the expiration of five years from and after the commencement of this Order or until the waterworks authorised by this Order shall have been substantially completed and the water therefrom introduced whichever shall first happen shall not be bound to give or maintain a constant supply. Suspension of constant supply.

A.D. 1910.

Town Council
not bound to
supply several
houses by one
pipe.

35. The Town Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of
discontinu-
ance.

36. A notice to the Town Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Town Council.

Byelaws for
preventing
waste &c. of
water.

37.—(1) The Town Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) All byelaws made under this section which affect any district beyond the burgh shall be subject to the approval of the local authority for such district. Provided that such consent shall not be necessary where in the opinion of the Local Government Board for Scotland it has been unreasonably withheld.

(3) Such byelaws shall apply only in the case of premises to which the Town Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 183 to 188 of the Public Health (Scotland) Act 1897 shall apply to all byelaws so made.

(4) In case of failure of any person to observe such byelaws as are for the time being in force the Town Council may if they think fit after twenty-four hours notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Town Council in the

same manner as the water rates in respect of the premises are recoverable. A.D. 1910.

38. The Town Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. Supply to houses partly used for trade &c.

39. The Town Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell or let meters &c.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Town Council to let for hire any water fittings to any person supplied by them with water.

40. Before any person connects or disconnects any meter by means of which any of the water of the Town Council is intended to be or has been registered he shall give not less than twenty-four hours notice in writing to the Town Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Town Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings. Notice to Town Council of connecting or disconnecting meters.

41. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Town Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Town Council shall (without prejudice to any other right or remedy for the protection of the Town Council) be liable to a fine not exceeding five pounds and the Town Council may in addition thereto recover the amount of any damage by them sustained And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Town Council or has fraudulently altered the index to any meter or other Injuring meters &c.

A.D. 1910. — instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Town Council the Town Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Town Council by the person so offending and may be recovered by them as water rates and assessments are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Town Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Penalty for taking water except for domestic use.

42. Every person who fraudulently takes or uses water belonging to the Town Council for any purpose other than domestic or drinking purposes shall for every such offence be liable to a penalty not exceeding ten pounds and to a daily penalty of five pounds for each day any such offence continues after conviction.

Application of penalties.

43. All penalties exigible under the provisions of this Order and of the Acts, wholly or partially incorporated therewith (excepting any penalties which may be imposed upon the Town Council) shall be paid over to the Town Council instead of being applied in the manner provided in the last-mentioned Acts or the Acts therein referred to.

Prosecution of offenders.

44. All offenders against any of the provisions of this Order or of any of the Acts incorporated with the same respectively or against any of the byelaws of the Town Council may be prosecuted and all penalties in respect of offences against any of such provisions or byelaws may be recovered summarily by the Town Council under the Summary Jurisdiction (Scotland) Act 1908.

Power to supply fittings.

45.—(1) The Town Council may if requested by any person supplied or about to be supplied by them with water furnish

to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Town Council in providing such materials and executing such work shall be paid by the person requiring the same. A.D. 1910.

(2) Any fittings let for hire under the provisions of this section shall not be subject to poinding or to the landlord's remedy for rent or be liable to be taken in execution under any process of any Court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Town Council as the actual owners thereof:

Provided as follows:—

(A) The Town Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connexion therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(B) Every sum charged by the Town Council in respect of provision of such fittings or the repairing fixing or removal thereof shall be clearly stated in every demand note delivered by the Town Council to the consumer:

(C) The total sums expended and received by the Town Council in connexion with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year.

46. The Town Council may on the application of the owner or occupier of any premises within the district within Power to lay pipes in streets not

[Ch. ciii.] *Fraserburgh Water Order Confirmation* [10 EDW. 7 &
Act, 1910. 1 GEO. 5.]

A.D. 1910. which the Town Council are for the time being authorised to
dedicated to supply water abutting on or being erected in any street laid
public use. out but not dedicated to the public use supply such premises
with water and may lay down take up alter relay or renew
in across or along such street such pipes and apparatus as may
be requisite or proper for furnishing such supply.

As to breaking up ground for maintaining communication pipes.
47. For the purpose of complying with any obligation
under this Order to maintain any pipe or apparatus the person
liable to maintain the same shall have the like power to open
the ground as is conferred upon him by sections 48 to 52 of
the Waterworks Clauses Act 1847 in relation to the laying of
communication pipes.

Power to Town Council to supply water to local authorities and others.
48.—(1) The Town Council may enter into and carry into
effect agreements with any local authority company or person
for the supply of water beyond the burgh to any such authority
company or person respectively in bulk for any purpose and
for such remuneration and on such terms and conditions and
for such period as may be agreed upon.

(2) The Town Council may from and after the completion
of the works authorised to be constructed as aforesaid supply
water from the conduits by this Order authorised or from any
of the works of the Town Council to any owners and occupiers
of lands and heritages situated in the neighbourhood of such
conduits and the Town Council may contract with all or any
such persons for such supply at such rates and upon such terms
and conditions and for such period or periods of time as they
may agree.

(3) Any supply of water under the provisions of this section
shall not prejudicially affect or restrict the supply of water
from time to time required for any purpose within the burgh.

(4) Any supply of water by the Town Council under this
section shall not be given except with the consent of any local
authority company or person supplying water under parlia-
mentary authority within the district to be supplied and of the
local authority of that district.

For protection of county council.
49. For the protection of the county council the following
provisions shall unless otherwise agreed upon in writing between
the Town Council and the county council apply and have effect

notwithstanding anything contained in this Order or in the Acts incorporated herewith or shown on the deposited plans and sections (that is to say):— A.D. 1910.

- (1) All conduits lines of pipes or other works to be laid in or along any county highway or in upon or across any county bridge shall as far as practicable be laid in such position in or at the side thereof as the county council in writing under the hand of the surveyor for the district in which such highway or county bridge is situated may reasonably direct:
- (2) All conduits or lines of pipes to be laid in or along any county highway shall consist of not more than two lines of pipes and the cover for each line of pipes shall be not less than two feet six inches measured from the surface of the road to the highest part of such pipes:
- (3) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall extend and apply to all county highways and county bridges opened and broken up or interfered with by the Town Council in the execution of the works authorised by this Order and the exercise of the powers of this Order Provided that the notice required by section 30 of the said Act of 1847 shall not be less than seven days instead of three days:
- (4) The plan required by section 31 of the said Act of 1847 shall be accompanied by a section of the proposed works and a short specification thereof and shall be delivered by the Town Council to the county council or the surveyor for the district for approval in the case of a county bridge culvert or drain not less than one month and in all other cases not less than fourteen days before the Town Council propose to commence to interfere with any county bridge or to break or open up any county highway for the purpose of executing such works and the approval of the county council or the surveyor for the district to such plan section and specification may be given upon such conditions as the county council or the surveyor for

A.D. 1910.

the district may reasonably determine. Provided that the county council shall be deemed to have given such consent if within the said period of one month or fourteen days as the case may be after such plan section and specification shall have been submitted to the surveyor for the district he shall not have given written notice to the Town Council objecting thereto:

- (5) No greater length than two hundred yards of any county highway shall be broken up at any one place at one time without the consent in writing of the county council and all works shown on the deposited plans shall be so executed by the Town Council as not to stop the traffic and so far as reasonably practicable not in any way to impede or interfere with the traffic on any such highway or over any county bridge or the approaches thereto and in case of default in compliance with this provision the county council may by their own servants and workmen clear any such highway and remove any such impediment to the traffic on any such highway or over any county bridge or the approaches thereto and may recover the expenses of and incident thereto from the Town Council:
- (6) Nothing in this Order contained shall authorise the Town Council to interfere with the structural part of any county bridge culvert or drain without the consent in writing of the county council or of the surveyor for the district which consent may be given upon such conditions as the county council or the surveyor for the district may reasonably determine. Provided that the county council shall be deemed to have given such consent if within one month after plans of the proposed works have been submitted to the surveyor for the district he shall not have given written notice to the Town Council objecting thereto:
- (7) Nothing in this Order contained shall interfere with the right of the county council to alter the level of or to divert or improve in any manner they think fit any county highway in or along which any conduit line of pipes or other works of the Town Council shall

have been laid and the Town Council shall forthwith on receiving notice in writing under the hand of the clerk of the county council or the surveyor for the district alter the position of any such conduit line of pipes or other works in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration as provided by subsection (15) of this section : A.D. 1910.

- (8) Nothing in this Order contained shall interfere with the right of the county council at any time or times to remove alter or rebuild any county bridge or the approaches thereto over or near or attached to which any conduit line of pipes or other works of the Town Council are carried in the same manner as they might have removed altered or rebuilt any such bridge or the approaches thereto if this Order had not been confirmed and such conduit line of pipes or other works had not been constructed or laid over or near or attached to such bridge and in the event of any such bridge or the approaches thereto over or near or attached to which any such conduit line of pipes or other works are laid being removed altered or rebuilt as aforesaid the Town Council shall at their own cost alter the position of such conduit line of pipes or other works and any works by which such conduit line of pipes or other works are carried over or near or attached to such bridge or the approaches thereto as aforesaid Provided that during the removal alteration or rebuilding of such bridge as aforesaid the county council shall afford all reasonable facilities for temporarily carrying such conduit line of pipes or other works across or along any road or stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such conduit line of pipes or other works :
- (9) On the completion of the works authorised by this Order the Town Council shall be bound to restore the road surface above the conduit lines of pipes or other works where laid along the county highways in accordance with a specification to be adjusted between

A.D. 1910.

the Town Council and the county council and failing adjustment by these bodies to be adjusted by the arbiter nominated for the purposes of subsection (13) of this section :

- (10) The Town Council shall during the progress of the works take all necessary steps at their own expense for protecting the public using any county highway from injury and shall indemnify the county council against all costs losses or damages that may be incurred or suffered consequent upon their neglect or omission to provide such protection :
- (11) The Town Council shall make full compensation to the county council for all damage injury losses and expenses whatsoever which may from time to time be incurred or suffered by reason or in consequence of the leaking bursting or giving way of any of the works by this Order authorised :
- (12) The county council shall not be liable for or in respect of any damage or injury done to any work of the Town Council by reason of such work being laid at a depth below the surface of any highway insufficient for its protection from injury arising from the reasonable use of any steam or other roller or traction engine for the repair of such county highway or from the passage of the traffic on such highway or in repairing any county bridge or the approaches thereto or any culvert or drain :
- (13) For the purposes of section 57 of the Roads and Bridges (Scotland) Act 1878 and section 24 of the Local Government (Scotland) Act 1908 the Town Council shall be deemed to be the person by or in consequence of whose order any excessive weight shall have been passed or any extraordinary traffic conducted on the county highways in connexion with the execution of the works by this Order authorised and upon the commencement of this Order the Town Council and the county council shall appoint an arbiter or failing agreement such arbiter shall be appointed by the sheriff on the application of either party for the purpose of determining any question

which may arise regarding the damage done to the county highways by any excessive weight passing over the same or extraordinary traffic thereon in connexion with the execution of the works authorised by this Order. The said arbiter shall at the request of either party and after intimation to the other party examine the county highways and satisfy himself as to their condition prior to their being used for the purposes of the traffic in the execution of the works authorised by this Order and on receiving a report from the surveyor for the district that any portion of the county highways has been damaged and requires to be repaired as the result of such excessive weight or traffic as aforesaid he shall after intimation to the Town Council and such inquiry as he may deem necessary determine the proportion of the cost of all such repairs to be borne by the Town Council and county council respectively and on the arbiter certifying from time to time the proportion of the cost to be borne by the Town Council the same shall forthwith be paid by the Town Council to the county council. The Town Council shall also pay all charges incurred by the arbiter in carrying out his duties under this subsection. The decisions of the arbiter under this subsection shall be final: A.D. 1910.

(14) The Town Council shall provide proper and sufficient temporary dwellings for their workmen with all such sanitary arrangements as may be reasonably required by and to the reasonable satisfaction of the county council and the reasonable costs and expenses of the county council in regard to the sanitary inspection of such dwellings shall be borne and paid by the Town Council:

(15) If any difference shall arise between the Town Council and the county council under this section (other than under subsections (9) and (13) of this section) such difference shall be referred to the decision of an arbiter to be mutually chosen or failing agreement to be appointed by the sheriff on the application of either party and the decision of such arbiter shall be final:

A.D. 1910.

- (16) In this section the expression "the surveyor for the district" means the road surveyor of any of the districts of the county of Aberdeen.

Power to
borrow.

50. The Town Council may subject to the provisions of this Order in the manner and under the powers and provisions of the Burgh Police Acts from time to time borrow the sums following:—

- (1) For the purchase of lands and servitudes the sum of two thousand five hundred pounds;
- (2) For the purposes of the Works Nos. 1 3 and 5 by this Order authorised the sum of five thousand six hundred and eighty-eight pounds;
- (3) For the purposes of the Works Nos. 2 4 and 6 by this Order authorised the sum of thirty-seven thousand five hundred and sixty-five pounds;
- (4) For the purposes of the Work No. 7 and subsidiary works the sum of one hundred and seventeen pounds;
- (5) For the payment of the costs charges and expenses of and incidental to obtaining and confirming this Order the sum requisite for that purpose;
- (6) For the purposes of the water undertaking with the consent of the Secretary for Scotland but not otherwise such further moneys as the Town Council may require and the Secretary for Scotland shall have and may exercise in relation to such consent as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889:

And the Town Council may make and grant mortgages or other securities of the water assessment and rates rents and charges in the manner authorised by the Burgh Police Acts in security of the money so borrowed and interest thereon and any sums so to be borrowed may be borrowed on terms of the repayment thereof by annuity instalment or otherwise.

Periods for
repayment of
borrowed
money.

51. The Town Council shall pay off all moneys to be borrowed by them under this Order for the purposes of the water undertaking within the respective periods following

(herein-after referred to as "the prescribed period") (that is to say) :— A.D. 1910.

As to moneys borrowed for the purpose (1) and of Work No. 1 mentioned in the immediately preceding section of this Order within sixty years from the date or dates of borrowing the same;

As to moneys borrowed for the purposes of Works Nos. 3 and 5 mentioned in that section within fifty years from the date or dates of borrowing the same;

As to moneys borrowed for the purposes (3) mentioned in that section within thirty-five years from the date or dates of borrowing the same;

As to moneys borrowed for the purposes (4) mentioned in that section within thirty years from the date or dates of borrowing the same;

As to money borrowed for the purpose (5) mentioned in that section within five years from the commencement of this Order;

As to moneys borrowed with the approval of the Secretary for Scotland for the purposes (6) mentioned in that section within such period as the Secretary for Scotland may notwithstanding anything in the Burgh Police Acts contained prescribe.

52. The Town Council shall pay off all moneys borrowed by them (other than money borrowed for current expenses) under this Order either by means of a sinking fund formed under the provisions of this Order or by equal yearly or half-yearly instalments of principal or of principal and interest combined or partly by one of those methods and partly by another or others of them. Mode of repayment of borrowed money.

53.—(1) If the Town Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Order such sinking fund shall be formed or maintained either— Sinking fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

A.D. 1910.

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with the accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority other than the Town Council the Town Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Town Council towards the equal annual payments to the fund.

(4) The Town Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Town Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Town Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per

centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments. A.D. 1910.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the Town Council in addition to the payments provided for by this Order.

(7) If it appears to the Secretary for Scotland or to the Town Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Town Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(8) If the Town Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Town Council be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Town Council may with the consent of the Secretary for Scotland reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Town Council be sufficient to repay the loan in respect of which it is formed within the prescribed period the Town Council may with the consent of the Secretary for Scotland discontinue the annual payments to such sinking fund.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of

A.D. 1910. which it was formed shall be applied to such purpose as the Town Council may determine.

(12) The period at which the payments into the sinking fund shall commence shall be four years after the commencement of this Order or within one year after the substantial completion of the works authorised by this Order and the introduction of the water supply from the said works whichever shall be the earlier.

Power to
re-borrow.

54. If after having borrowed the sums of money by this Order authorised or any part thereof the Town Council shall pay off the same or any part thereof otherwise than by means of annuities or instalments or of the sinking fund provided by this Order it shall be lawful for the Town Council again to borrow the amount so paid off upon the same securities as those upon which the moneys so paid off were secured and so from time to time.

Borrowing
power for
current
expenses.

55. In the application to the burgh of section 49 (Power to borrow temporarily) of the Burgh Police (Scotland) Act 1903 the expression "any public general Act" shall be deemed to include this Order.

Application
of Burgh
Police Acts.

56. The provisions of the Burgh Police Acts with respect to water supply shall subject to the provisions of this Order and so far as not inconsistent therewith apply to the supply of water within the burgh by the Town Council from their existing waterworks and from the works by this Order authorised.

Reserve
fund.

57. The Town Council may provide out of the yearly water assessment and rates rents charges and other revenues of the water undertaking a reserve fund by setting aside such a sum annually as they may from time to time think fit and investing the same and the resulting income thereof upon such securities as the Town Council may by law for the time being invest their funds and accumulating the same at compound interest which reserve fund shall not at any time exceed in the whole the sum of seven thousand pounds and shall be applicable as and when the Town Council may determine from time to time for the renewal of the works plant and apparatus or any extraordinary claim or demand at any time arising against the Town Council in respect of the water undertaking.

Annual
return to
Secretary for

58. The treasurer of the Town Council shall within two months after the expiration of each year during which any sum

is required to be paid as an instalment or to be set apart for A.D. 1910.
a sinking fund transmit to the Secretary for Scotland a return Scotland
in such form as may be prescribed by the Secretary for Scotland with respect
and verified by statutory declaration if so required by him to sinking
showing the amount which has been so paid or set apart in fund.
respect of that year and the description of the securities upon
which the same has been invested and also showing the purposes
to which any portion of such sinking fund and the interest or
income thereof have been applied during the same period and
the total amount remaining invested at the end of the year
and in the event of any default in making such return such
treasurer so making default shall be liable to a penalty not
exceeding twenty pounds which shall be recoverable by the
Secretary for Scotland as a debt to the Crown is recoverable
If it appear to the Secretary for Scotland by any such return
or otherwise that the Town Council have failed to pay any
instalment or to set apart the sum required by this Order to be
set apart for the sinking fund or to make any increased payment
thereto by this Order required or to have applied any portion
of the moneys set apart for that fund or any interest or income
thereof to any purposes other than those authorised by this
Order the Secretary for Scotland may by order direct that a
sum not exceeding double the amount in respect of which such
default shall have been made shall be set apart and invested as
part of the sinking fund and such order shall be enforceable
by decree of either division of the Inner House of the Court
of Session in Scotland pronounced in a summary application
presented for that purpose.

59. All sums borrowed by the Town Council on mortgage Application
or cash account or otherwise (except any sums borrowed for of moneys
current expenses) shall be applied only to purposes to which borrowed.
capital is properly applicable.

60. No person lending money to the Town Council shall Protection of
be bound to inquire as to the observance by the Town Council lender from
of any provision of the Burgh Police Acts or this Order or be inquiry.
bound to see to any application or be answerable for any loss
or non-application of such money or any part thereof.

61. The mortgagees of the Town Council under this Order For appoint-
may enforce payment of arrears of interest or principal or ment of
principal and interest due on their mortgages by the appointment judicial
factor.

A.D. 1910. of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than three thousand pounds.

Existing waterworks and new works to form one undertaking.

62. Subject to the provisions of this Order the existing waterworks of the Town Council and the works to be constructed under the authority of this Order shall for all purposes whatsoever be and be deemed to be part of the water undertaking.

Costs of Order.

63. The costs charges and expenses incurred in preparing for and obtaining and confirming this Order and incidental thereto shall be paid by the Town Council out of moneys in their hands or out of any moneys borrowed by them under this Order.

SCHEDULE referred to in the foregoing Order.

PROPERTIES OF WHICH PORTIONS ONLY MAY BE TAKEN.

Parish.						Numbers on deposited Plans.
New Deer	-	-	-	-	-	10 34 and 40.
Old Deer	-	-	-	-	-	21.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

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